Table A5. Detailed documentary findings: UK, EU, combined interpretation and implications.

Finding	UK	EU	Combined	Implication
F1. Checking is required, with substantial discretion over measures and acceptance standards. Article 15(2) also requires the Commission, with relevant stakeholders, to encourage as appropriate the development of benchmarks and measurement methodologies. Discretion therefore operates within substantive obligations and arrangements for further measurement guidance; it is not an unrestricted choice of any convenient test.	The Playbook tells bodies 'You must be clear about what objective measures you're assessing the AI outputs against' without naming any.	Providers test "against prior defined metrics and probabilistic thresholds that are appropriate to the intended purpose" (Art. 9(8)); they define both themselves.	Testing, monitoring, re-testing and oversight are expected in the relevant contexts. Providers and bodies make important metric and threshold choices within substantive obligations. UK071 and UK174 include illustrative thresholds; some labelling and watermark provisions specify more detailed checks. EU046 Article 15(2) provides for encouraging benchmarks and measurement methodologies.	An aggregate accuracy result alone does not show that outputs are stable or suitable for a particular use. Whether the testing satisfies applicable requirements needs a separate assessment.
F2. Stability and configuration are addressed unevenly across duties and guidance.	Non-binding guidance only: the audit offices' guide expects the same prompt to be run several times, with prompts and sampling settings documented; AI Insights asks for consistency between environments. The ATRS model-version field 'may' be left blank for off-the-shelf models.	Arts 9(6) and 15(1) require consistent high-risk-system performance without naming a repeated-run agreement statistic. Article 15(2) provides for encouraging benchmarks and measurement methodologies. Other EU passages address responsibility for prompts and configurations and quality controls for a prompt library.	The cited provisions and guidance do not prescribe a common repeated-run agreement statistic or a specific response to each disagreement. General risk and suitability duties may still require action.	The cited AI Act provisions do not name a repeated-run agreement statistic; explicit UK guidance recommends consistency testing. In the experiment, unchanged-repeat pairwise disagreement averages 2.78%, while the seven retained GPT-4o alternatives differ from the anchor on 5.00%–11.58% of paired labels. These results illustrate properties that an assessment should make visible; they do not establish that existing duties could not require the relevant checks.
F3. Oversight duties are supplemented by guidance on review triggers, reviewer capability and testing.	Human validation of high-risk decisions. DWP users check outputs 'to the best of their ability'. One article routes uncertain cases to reviewers, as guidance.	The cited use-specific provisions include biometric identification (separate verification subject to Art. 14(5) exceptions, and limits on adverse decisions based solely on outputs) and published public-interest AI text (disclosure exception where substantive review/editorial control and responsibility conditions are met). General oversight duties and data-protection limits also apply in their respective scopes.	The cited sources address meaningful review, output uncertainty, competence and intervention. UK071 recommends testing users' recognition of problematic outputs and handover/override mechanisms; Article 14 addresses effective oversight and automation bias. Detailed routing and evaluation choices remain context-dependent. The study does not establish that relevant checks cannot be required under broader duties.	Which outputs get human attention is mostly decided before any output exists. In the experiment, the configuration alone moved the share sent to review at the same threshold from under 1% to 41.0%.
F4. The sampled UK documents emphasise deploying bodies; the EU sample combines provider regulation with deployer duties.	Whether to use AI is a test each body applies to itself. Standard-setting is passed down to organisations and regulators. The firm rules include existing law, Secure by Design, DWP's own policy and the ATRS, which governs publication rather than use.	Most duties fall on providers before market. Public bodies, as deployers, register their use, notify their fundamental rights impact assessment, inform people and explain decisions.	Two different approaches, partly reflecting different levels of government (section 4.2).	In the UK, checking depends on each body's choices and capacity. In the EU, it rests mainly on the provider's pre-market testing, which may not reflect a particular body's use. Neither, in the cited provisions, specifically requires testing on the body's own task.
F5. External assessment and approval depend on the system and its use.	Internal approval; central spend approvals; ICO consultation where data-protection risk remains. Few documents say who stops a model.	The sample identifies use-specific authorisation and data-protection consultation requirements. Separately, Article 43 distinguishes internal-control, notified-body and sectoral conformity routes. Providers relying on the Article 6(3) exception for an Annex III system must assess its conditions, document the assessment and meet registration duties. Incoming-document classification is an illustrative narrow procedural task, not an automatic exemption.	No universal independent approval gate is established by the cited passages; assessment and use-authorisation requirements depend on the system and intended use.	A topic classifier may face no outside check before use, and may fall outside the high-risk rules altogether. Deciding whether it is good enough rests with the body using it; in the EU, authorities can order withdrawal after the event.
F6. Resource duties coexist with shared support; capacity in practice is not established.	£10 million regulator-capability package announced; £21 million NHS deployment example cited. Neither establishes funding of particular assurance checks.	Authorities are to have 'adequate' resources, unquantified.	Support includes guidance, templates, free training, advice and access to expertise, alongside organisational resource duties. Recipients and conditions vary; the documents do not establish actual capacity or sufficiency.	Testing, logging and review require organisational capability. The sample identifies relevant duties and shared support, but does not measure whether bodies can access sufficient staff, time or finance for repeated runs, configuration comparisons or review. A lack of a specified assurance budget in a cited passage is not evidence that resources are absent.
F7. Consequences vary by duty, actor and legal route; enforcement in practice is not established.	The cited UK sources identify organisational, disciplinary, contractual and existing-law consequences for different actors and breaches. UK085 specifies no distinct ATRS publication sanction; this does not establish absence of legal or administrative consequences. Actual enforcement is not measured.	Member States set the extent of administrative fines on national public authorities/bodies (Art. 99(8)); Union institutions have the separate Art. 100 regime. Article 111(2), as amended, contains a 2 August 2030 compliance provision for the relevant existing high-risk systems intended for public-authority use, within transitional rules that address significant design changes and preserve the application of Article 5. It is not a blanket postponement of all obligations for public-sector AI.	Potential consequences are specified for different duties and actors; their application and effectiveness are not observed.	The cited documents specify few consequences for a public body that skips a check; when a check fails, the documents say the tool should be suspended or withdrawn, but leave that judgment to the body. Whether checks happen depends largely on the body itself.
F8. Public transparency and supervisory accountability coexist, with different disclosure and challenge arrangements.	Published ATRS records naming an accountable role; challenge routes.	Notification and documentation supplied to supervisors; registrations of most high-risk systems are public (law enforcement, migration, asylum and border systems are registered non-publicly).	In the UK, responsibility for outputs stays with the body that uses the tool, including when the tool is bought in; in the EU it is split between provider and deployer.	UK transparency records identify tools and responsible roles; EU arrangements provide notifications, incident reports and access to other documentation in specified circumstances. The cited provisions do not establish a uniform public report of matched-item repeated-run stability. Accuracy measures, test records or requested documentation could nevertheless include relevant stability evidence. The analysis concerns what reporting is specified, not proof that these routes never carry such evidence in practice.